opinion concurring in the judgment, in which GORSUCH, J., joined, *post*, p. 485.

*Stuart Banner* argued the cause for petitioner. With him on the briefs were *Daniel L. Geyser*, *Michael F. Qian*, and *Edward F. Shaughnessy III*.

*Andrew N. Warthen* argued the cause for respondent. With him on the brief was *Joe D. Gonzales*.

*Kevin J. Barber* argued the cause for the United Sates as *amicus curiae* supporting respondent. With him on the brief were *Solicitor General Sauer, Acting Assistant Attorney General Galeotti*, *Deputy Solicitor General Feigin*, and *Ethan A. Sachs*.*

JUSTICE JACKSON delivered the opinion of the Court.

A criminal defendant has many unassailable rights during his trial, including the right not to testify and the right to access his lawyer. But if and when a defendant takes the witness stand in his own defense, his status shifts. He does not shed his rights as a criminal defendant. But he does assume some of the burdens of a testifying witness.

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*Briefs of *amici curiae* urging reversal were filed for the Constitutional Accountability Center by *Elizabeth B. Wydra*, *Brianne J. Gorod*, and *Alexis Hoag-Fordjour*; for Legal Ethics Scholars by *David A. Strauss*, *Sarah M. Konsky*, and *Matthew S. Hellman*; for the National Association of Criminal Defense Attorneys by *Andrea Roth* and *Barbara E. Bergman*; for the National College for DUI Defense by *Steven W. Hernandez*, *Michelle Behan*, and *Donald J. Ramsell*; and for Retired Judges by *Gregg Costa* and *Ryan Azad*.

A brief of *amici curiae* urging affirmance was filed for the State of Ohio et al. by *Dave Yost*, Attorney General of Ohio, *T. Elliott Gaiser*, Solicitor General, and *Jana M. Bosch*, Deputy Solicitor General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Tim Griffin* of Arkansas, *James Uthmeier* of Florida, *Theodore E. Rokita* of Indiana, *Russell Coleman* of Kentucky, *Liz Murrill* of Louisiana, *Lynn Fitch* of Mississippi, *Andrew Bailey* of Missouri, *Austin Knudsen* of Montana, *Drew H. Wrigley* of North Dakota, *Gentner Drummond* of Oklahoma, *Alan Wilson* of South Carolina, *Marty Jackley* of South Dakota, and *Jason Miyares* of Virginia.

This case requires us to navigate a tension between one of those rights and one of those burdens. The right is a defendant's entitlement to the advice of counsel unrestricted by judicial interference. The burden is a witness's responsibility to offer sworn testimony uninfluenced by a lawyer's midstream tinkering. Both are longstanding and fundamental, as the right forms the heart of the Sixth Amendment's right to counsel and the burden serves the central truth-seeking function of a trial.

We have twice addressed this tension in the context of a trial recess that interrupts a defendant's testimony. We held in *Geders* v. *United States*, 425 U. S. 80 (1976), that a court *may not* prevent a testifying defendant from conferring with his lawyer during an overnight recess. We held in *Perry* v. *Leeke*, 488 U. S. 272 (1989), that a court *may* prevent a testifying defendant from conferring with his lawyer during a brief daytime recess. The trial courts in both cases had imposed unqualified bans that separated client from counsel entirely.

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This case presents a third scenario: an overnight recess that interrupts a defendant's testimony—but one in which the court allows counsel to speak with his client while limiting the content of the discussion. The court here prohibited the defendant's lawyer only from "managing" the defendant's testimony; it permitted all other discussion. Because we conclude that this qualified conferral order permissibly balanced the right to counsel against the burden of offering unaltered trial testimony, we affirm.

## I

David Villarreal's murder trial culminated with his own testimony. The only defense witness, Villarreal testified that he stabbed the victim in self-defense while the victim was trying to choke him to death.

A 24-hour overnight recess interrupted Villarreal's direct testimony. Before the recess, the trial judge gave Villarreal

the instruction that has become the centerpiece of this appeal. Apparently concerned that Villarreal's counsel might coach Villarreal to adjust the remainder of his testimony, the judge sought to narrow Villarreal's ability to confer with his attorneys overnight.

The judge and Villarreal's counsel engaged in an extended back-and-forth over the scope of the order. In the end, the trial judge left Villarreal's attorneys with this directive: "[A]sk yourselves before you talk to [Villarreal] about something, is this something that—manage[s] his testimony in front of the jury?" 707 S. W. 3d 138, 142 (Tex. Crim. App. 2024). Addressing Villarreal, the judge clarified: "I'm not telling you, you can't talk to them." *Ibid.* Indeed, the judge recognized that Villarreal had "a constitutional right to confer" with his attorneys about certain topics. *Ibid.* "For instance, suppose . . . you need to start talking . . . about possible sentencing issues, you can do that." *Ibid.* But to the extent Villarreal's lawyers wished to "manage" his testimony, the judge placed that off limits. *Ibid.*

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Villarreal's lawyers objected under the Sixth Amendment but indicated that they understood the order's scope. *Id.*, at 142–143. Villarreal resumed his testimony 24 hours later and was subsequently convicted of murder; he received a 60-year sentence. *Id.*, at 140, 143. At no point did Villarreal or his attorneys suggest that the qualified conferral order had inhibited any conversation they wished to have. See *id.*, at 143.

## II

The Court of Appeals of Texas affirmed Villarreal's conviction, see 596 S. W. 3d 338 (2019), as did the Texas Court of Criminal Appeals (TCCA), see 707 S. W. 3d 138. The TCCA understood the challenged conferral order as an effort to "preserv[e] the truth-seeking function of trial" and thus construed the order as prohibiting Villarreal's lawyers from "*managing*" his "ongoing testimony." *Id.*, at 146. In the TCCA's view, the order was a permissible exercise of the

trial court's discretion because it "only restricted discussions of [Villarreal's] ongoing testimony and nothing else." *Ibid.* Although a defendant must be able to confer with counsel about the "effects" of his testimony, the TCCA reasoned, a trial court may prohibit more explicit discussion of the defendant's testimony itself. *Id.*, at 145. The TCCA explained that a trial court may, for example, order defense counsel not to "coach the testimony to course-correct a disastrous direct examination to brace against the impact of the upcoming cross-examination." *Ibid.*

In separate writings, multiple TCCA judges expressed hesitation with the "murky" line that emerges from *Geders* and *Perry*. See 707 S. W. 3d, at 147–148 (Yeary, J., concurring). They worried that confusion about the proper scope of conferral orders risks trenching on a defendant's Sixth Amendment right to obtain full, unqualified advice on matters key to the effective assistance of counsel, such as whether to plead guilty. See *id.*, at 148 (same); *id.*, at 150 (Keel, J., concurring).

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Those judges are among many who have struggled with the permissibility of similar orders and who have diverged both in their bottom-line conclusions and in their reasoning.[1] We granted certiorari to clarify the Sixth Amendment's boundaries. 604 U. S. 1241 (2025).

## III

The Sixth Amendment guarantees as "fundamental" a criminal defendant's right to consult with his counsel. See,

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[1] Compare, *e. g.*, *Martin* v. *United States*, 991 A. 2d 791, 794–795, and n. 13 (D. C. 2010) (concluding that an order banning discussion of testimony during an overnight recess violated the Sixth Amendment and collecting supporting cases), with *Beckham* v. *Commonwealth*, 248 S. W. 3d 547, 553 (Ky. 2008) (allowing an order "permitting the defendant to have contact with his attorneys during an overnight recess while limiting that contact by telling the attorneys to not discuss their client's ongoing testimony"). See also *United States* v. *Triumph Capital Group, Inc.*, 487 F. 3d 124, 127, 133 (CA2 2007) (noting that "courts have struggled to define the constitutional line between *Geders* and *Perry*").

*e. g.*, *Powell* v. *Alabama*, 287 U. S. 45, 68 (1932). When a defendant opts to take the witness stand, however, he "[a]ssum[es] the position of a witness," with its attendant "criticisms and burdens." *Reagan* v. *United States*, 157 U. S. 301, 305 (1895). One such burden: Courts may limit advice from counsel aimed at "influenc[ing] the testimony in light of the testimony already given." *Geders*, 425 U. S., at 87.

During a normal trial recess—one that does not interrupt the defendant's testimony—no such influence is threatened and the Constitution plainly protects a defendant's right to access his counsel without judicial interference. But during a midtestimony recess (when the defendant not only enjoys the Sixth Amendment's protection but also bears a witness's burdens), it is less clear whether and to what extent the Sixth Amendment permits judge-imposed restrictions on the defendant's access to counsel.

This Court first encountered that question in *Geders*. An overnight recess divided Geders's direct testimony from his cross-examination. Before the recess, the judge ordered Geders not to discuss the case overnight with anyone. 425 U. S., at 82–83, and n. 1. Geders's attorney objected to this absolute conferral ban, explaining that he believed his client had a right to confer with him "about matters other than the imminent cross-examination." *Id.*, at 82.

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This Court agreed. The trial judge's order, we explained, was a species of the traditional practice of witness sequestration. "Applied to nonparty witnesses," the practice is unobjectionable and "within sound judicial discretion." *Id.*, at 88. But Geders "was not simply a witness; he was also the defendant." *Ibid.* And whereas "[a] nonparty witness ordinarily has little, other than his own testimony, to discuss with trial counsel" during an overnight recess, the same is not true of a defendant: "It is common practice during such recesses for an accused and counsel to discuss the events of the day's trial." *Ibid.* Indeed, we explained,

> "[s]uch recesses are often times of intensive work, with tactical decisions to be made and strategies to be re-

> viewed. The lawyer may need to obtain from his client information made relevant by the day's testimony, or he may need to pursue inquiry along lines not fully explored earlier. At the very least, the overnight recess during trial gives the defendant a chance to discuss with counsel the significance of the day's events." *Ibid.*

For those reasons, we held in *Geders* that the Sixth Amendment precludes the judge from keeping a defendant and his lawyer apart during that crucial interlude in the defendant's testimony. We observed that concerns about "the problem of possible improper influence on testimony or 'coaching' of a witness" can be addressed without so blunt an instrument as a complete overnight barrier. *Id.*, at 89. And, "[t]o the extent that conflict remains" between the Constitution and the interest in untutored cross-examination, we concluded that "the conflict must, under the Sixth Amendment, be resolved in favor of the right to the assistance and guidance of counsel." *Id.*, at 91.

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*Geders* explicitly reserved judgment regarding the constitutionality of a shorter conferral restriction, like one governing "a brief routine recess during the trial day." *Id.*, at 89, n. 2. But when that question arose 13 years later in *Perry*, we upheld the restriction, emphasizing a defendant's shift in status when he takes the stand. "[B]efore he begins to testify," we reasoned, a defendant "has an absolute right" to consult with his lawyer. 488 U. S., at 281. When he becomes a witness, however, a competing duty arises: the duty to advance "the truth-seeking function of the trial." *Id.*, at 282. That function, we explained, is best served when testimony is unaided by "an opportunity to consult with third parties," such as lawyers, about the course of one's testimony once it has begun. *Ibid.*

Then, *Perry* made a key observation: As a practical matter, a truth-undermining consultation is exactly the kind of communication likely to happen during a brief daytime recess. That is, during a brief recess, "there is a virtual cer-

tainty that any conversation between the witness and the lawyer would relate to the ongoing testimony." *Id.*, at 283–284. Notably, this fact differentiated the *Perry* recess from the *Geders* one. When (as in *Geders*) the recess stretches overnight, the discussion will likely "encompass matters that go beyond the content of the defendant's own testimony—matters that the defendant does have a constitutional right to discuss with his lawyer, such as the availability of other witnesses, trial tactics, or even the possibility of negotiating a plea bargain." *Perry*, 488 U. S., at 284.

*Perry* therefore held that what the Sixth Amendment forbids overnight (a total conferral ban), it permits during a brief daytime recess. *Perry* also suggested that, during such a brief recess, trial courts might opt for a lesser included restriction—one that would permit consultation on protected topics "but forbid discussion of ongoing testimony." *Ibid.*, n. 8.

We acknowledged in *Perry* that "the line between the facts of *Geders* and" *Perry* "is a thin one." *Id.*, at 280. It is nonetheless "a line of constitutional dimension." *Ibid.*

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## IV

### A

Before us, Villarreal and Texas place that line along different axes. For Villarreal, the line is temporal. Villarreal concedes that, during a brief daytime recess, a defendant has no right to confer. But during an overnight recess, Villarreal insists, the conferral right is absolute and unqualified; that is, an overnight recess is different in kind such that the Sixth Amendment admits no restriction.

For Texas, the line is substantive. The reason *Perry* held a total nonconferral order permissible during a brief daytime recess, Texas argues, is because of the unprotected *content* of discussion that presumably occupies such a recess, not simply because of the amount of time the recess lasts. And if that is so, then a court order prohibiting only unprotected

content (like, Texas posits, the one here) comports with the Sixth Amendment.[2]

We conclude that Texas is correct. Underlying *Perry* are two premises. One is factual and the other legal, but both are content based. First, while *Perry* recognizes that a testifying defendant has a constitutional right during a midtestimony recess to consult with his lawyer about a wide range of topics—"the availability of other witnesses, trial tactics, or even the possibility of negotiating a plea bargain," *id.*, at 284—it posits that a short break in a defendant's appearance on the witness stand is unlikely to feature such topics. Instead, such a pause will likely contain discussion of "nothing but the testimony." *Ibid.* So, then, *Perry*'s second (correlative) premise emerges: A midtestimony defendant does not have a protected Sixth Amendment right to discuss his ongoing testimony with his lawyer. Put differently, where no nontestimony topics are involved, the Sixth Amendment provides no constitutional right to consultation during breaks in the defendant's testimony. *Id.*, at 281.

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In less prominent form, the same content-based premises undergird *Geders*. The Court there explained that a defendant differs from a normal witness because the defendant has matters "*other than* his own testimony" to discuss. 425 U. S., at 88 (emphasis added). And Geders's lawyer apparently shared that same assumption, because he insisted that he and his client must be permitted to confer "about matters *other than* the imminent cross-examination." *Id.*, at 82 (emphasis added).

Villarreal's hardline position—that the Sixth Amendment permits no restriction of a defendant's consultation right during an overnight recess—thus fails to account for the content-related premises underlying *Geders* and *Perry*. It is inconsistent too with another such premise: *Perry*'s expla-

[2] The lower courts have likewise diverged with respect to this subsidiary time-versus-content question. See *Serrano* v. *Fischer*, 412 F. 3d 292, 299–300 (CA2 2005) (Sotomayor, J.) (collecting cases).

nation that something shifts "when a defendant becomes a witness." 488 U. S., at 281; see also *id.*, at 282 ("[W]hen he assumes the role of a witness, the rules that generally apply to other witnesses—rules that serve the truthseeking function of the trial—are generally applicable to him as well"). Villarreal says the shift merely allows a judge to prohibit "impermissible coaching," which Villarreal defines as soliciting perjury. Tr. of Oral Arg. 37. But, of course, soliciting perjury is *always* improper; a judge's instruction to avoid it would raise no more eyebrows at the outset of trial than leading into a midtestimony recess. See *Nix* v. *Whiteside*, 475 U. S. 157, 166 (1986). On Villarreal's view, the defendant's taking the witness stand works no change in the judge's discretion to preserve "the truth-seeking function of the trial." *Perry*, 488 U. S., at 282.

By contrast, Texas's reading—and now ours—gives content to *Perry*'s framework: What shifts is the protection afforded to a certain subset of consultation. That subset, we hold, is discussion of testimony for its own sake—what *Perry* called "nothing but the testimony." *Id.*, at 284. A defense attorney may rehearse her client's testimony before her client takes the witness stand. See ABA Standing Committee on Ethics and Professional Responsibility, Formal Opinion 508: The Ethics of Witness Preparation 1–4 (Aug. 5, 2023) (Formal Opinion 508). And a defense attorney may debrief her client's testimony after her client leaves the witness stand for good. Such discussion of testimony *qua* testimony is entirely proper and the consultation that enables it is constitutionally protected before the defendant's testimony begins and after it concludes. But for the duration of the defendant's time on the stand, consultation about the testimony itself—rather than incidental discussion of testimony in service of protected topics—sheds its constitutional protection.

This means that, as even Texas acknowledges, a court cannot prohibit a lawyer from asking his client about a new potential witness or a piece of evidence mentioned for the first

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time during the defendant's testimony, or a defendant from asking his lawyer about compliance with the court's evidentiary rulings. See Brief for Respondent 27–28. What it may prohibit is discussion of testimony *for its own sake*. Such discussion threatens to shape the defendant's testimony and undermine the trial's search for the truth.

This rule follows naturally from our precedents and the principles underlying them; in particular, the recognition that conferral orders are "a corollary" of the traditional practice of witness sequestration, refashioned to accommodate the special protections of a defendant. *Perry*, 488 U. S., at 281–282. Witness sequestration (the exclusion of a witness from the courtroom prior to his testimony) prevents the witness from "adapt[ing] his testimony . . . to victory rather than to veracity, so as to meet the necessities as laid open by prior" testimony. 6 J. Wigmore, Evidence § 1869, p. 502 (3d ed. 1940); accord, *Perry*, 488 U. S., at 281–282. Pure sequestration is, of course, incompatible with a defendant's right to attend his trial and to consult his attorney. See *Geders*, 425 U. S., at 88; *Brooks* v. *Tennessee*, 406 U. S. 605, 607 (1972). But a rule prohibiting the discussion of testimony for its own sake mimics sequestration within constitutional bounds. It restrains real-time feedback aimed at chameleonic adjustments in the defendant's testimony and thus (like true sequestration) advances "the central function of the trial, which is to discover the truth." *Portuondo* v. *Agard*, 529 U. S. 61, 73 (2000).

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In short, we agree that "[t]he difference between *Perry* and *Geders* is not the quantity of communication restrained but its constitutional quality." *United States* v. *Padilla*, 203 F. 3d 156, 160 (CA2 2000). And while many topics retain constitutional protection during extended breaks in a defendant's testimony (see Part IV–B, *infra*), testimony *qua* testimony does not.[3]

[3] To be clear, we address here only the constitutional protection for—and not the ethical propriety of—discussion of testimony during an overnight recess. In other words, this opinion solely considers the extent of

B

While not a model of clarity, the trial judge's order here did enough to tailor the "quality" of forbidden consultation, *Padilla*, 203 F. 3d, at 160, to the rule we discern from *Geders* and *Perry*. As the TCCA explained, the order prohibited Villarreal's lawyers from "*managing*" his "ongoing testimony." 707 S. W. 3d, at 146. Forbidding that mode of discussion permissibly balanced the truth-seeking function of the trial against Villarreal's right to discuss protected topics with his lawyers.

Those protected topics are not insignificant. Indeed, under the rule we announce, many topics a testifying defendant and his lawyer might discuss during a midtestimony overnight recess remain protected. No less than before or after his testimony, a defendant's access to advice about trial strategy remains essential to the collaborative enterprise that is criminal defense. See *McCoy* v. *Louisiana*, 584 U. S. 414, 421–424 (2018). We have long held that "'[a]n accused is entitled to be assisted'"—not merely directed—"'by an attorney.'" *Kimmelman* v. *Morrison*, 477 U. S. 365, 377 (1986) (quoting *Strickland* v. *Washington*, 466 U. S. 668, 685 (1984)).[4] And just as lawyer advises client, so too does client advise lawyer: "More than merely allowing the defendant to participate in tactical decisions, consultation enables the

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a court's *discretion* to ban such consultation. See *Perry* v. *Leeke*, 488 U. S. 272, 284–285 (1989). We do not disturb what a lawyer may discuss with her client in the absence of a court order. Nor do we touch upon what a lawyer *must* discuss with her client to render effective assistance.

[4] See also, *e. g.*, *Faretta* v. *California*, 422 U. S. 806, 820 (1975) (explaining that the Sixth Amendment "speaks of the 'assistance' of counsel, and an assistant, however expert, is still an assistant"); *Gannett Co.* v. *DePasquale*, 443 U. S. 368, 382, n. 10 (1979) (observing that the Sixth Amendment "contemplat[es] a norm in which the accused, and not a lawyer, is master of his own defense"); *Florida* v. *Nixon*, 543 U. S. 175, 178 (2004) ("Defense counsel undoubtedly has a duty to discuss potential strategies with the defendant" (citing *Strickland*, 466 U. S., at 688)); *Morris* v. *Slappy*, 461 U. S. 1, 21 (1983) (Brennan, J., concurring in result) ("[T]he attorney must work closely with the defendant in formulating defense strategy").

lawyer to obtain factual information crucial to making them." *United States* v. *McLaughlin*, 164 F. 3d 1, 17 (CADC 1998) (Tatel, J., dissenting).

As we explained in *Perry*, a court may not stem this collaboration merely because it involves incidental discussion of testimony. 488 U. S., at 284; accord, *Geders*, 425 U. S., at 91 (explaining that any conflict between the Sixth Amendment and the desire for untutored testimony must "be resolved in favor of the right to the assistance and guidance of counsel"). For example, a court cannot prohibit a defendant from obtaining his attorney's advice on whether and why he should consider a guilty plea—even if the "why" includes the impact of his ongoing testimony on the trial's prospects. The Sixth Amendment does not abide a take-my-word-for-it vision of the attorney-client relationship. It does, however, tolerate a midtestimony conferral order prohibiting discussion of testimony as such, lest that discussion shape future testimony "in light of the testimony already given." *Id.*, at 87. The no-testimony-management order entered here falls on the constitutional side of that line.[5]

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C

Having rejected Villarreal's frontline argument (that the Sixth Amendment affirmatively protects access to testimony management during an overnight recess), we also reject his backup. Even if the Sixth Amendment's protection does not itself span the full range of topics that might come up during

[5] The line between discussion of testimony for its own sake and discussion of testimony incidental to other topics may not always be razor sharp. We trust that defense counsel will not evade the spirit of qualified conferral orders by couching discussion of testimony *qua* testimony in strategic terms. For instance, unprotected discussion does not become protected simply by way of a preface explaining that a defendant's "chances of acquittal will improve" if he adjusts his testimony. Although such advice involves strategic considerations, at its core it seeks to shape future testimony in light of past testimony and thus is unprotected. Accord, *post*, at 484 (ALITO, J., concurring).

a midtestimony recess, Villarreal asks for a prophylactic rule bubble-wrapping what the Sixth Amendment *does* protect. In Villarreal's view, a line dividing discussion of testimony from discussion of other topics is "no line at all." Brief for Petitioner 25. And so Villarreal fears that conferral orders like the one at issue here will operate to chill protected discussion *in effect* even if they do not do so formally. Villarreal thus demands a bright-line rule permitting no restrictions overnight.

This argument, which is not without force, has persuaded a number of lower courts. See, *e. g.*, *United States* v. *Santos*, 201 F. 3d 953, 965 (CA7 2000) ("*Perry* makes clear" that a no-discussion-of-testimony order violates the Sixth Amendment because it "would as a practical matter preclude the assistance of counsel across a range of legitimate legal and tactical questions"); *United States* v. *Triumph Capital Group, Inc.*, 487 F. 3d 124, 132–133 (CA2 2007) (similar); *United States* v. *Cobb*, 905 F. 2d 784, 792 (CA4 1990) (similar). But, importantly, those courts addressed conferral orders banning *any and all* discussion of the defendant's testimony, even if incidental to protected topics.

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Uncompromising no-testimony-discussion orders like those are easy to articulate and hard to apply. That is because, as we have explained, protected discussion—*e. g.*, deliberation over whether to accept a guilty plea—often must involve some discussion of testimony. The courts of appeals that have prohibited blanket no-discussion orders have reasonably feared that directives preventing all discussion of testimony, full stop, would be impermissibly overbroad and thus dilute the Sixth Amendment's guarantee.

The same concern is not present with an order prohibiting only discussion of "nothing but the testimony." *Perry*, 488 U. S., at 284. Consultation about testimony itself—practicing it, debriefing it, and the like—is a recognized, distinct tool in every trial lawyer's preparatory arsenal. See, *e. g.*, Brief for Legal Ethics Scholars as *Amici Curiae* 10–11; For-

mal Opinion 508, at 1–2. We trust that lawyers ordered to sheathe that tool overnight will have no difficulty doing so.

V

We do not share JUSTICE THOMAS's view that today's decision "needlessly expands our precedents." *Post*, at 485 (opinion concurring in judgment). It is true that "*Perry* never stated" the rule we draw from it and *Geders*. *Post*, at 491. If it did, there would have been no need to take this case. But for the reasons explained above, today's result follows neatly from our precedents.

"[B]efore he begins to testify," a defendant "has an absolute right" to confer with his lawyer. *Perry*, 488 U. S., at 281; accord, *Geders*, 425 U. S., at 88. Once he begins to testify, what was absolute becomes qualified, as "the testifying defendant does not have a constitutional right to advice" about his "ongoing testimony." *Perry*, 488 U. S., at 284. But the testifying defendant "does have a constitutional right to discuss" "matters that go beyond the content of [his] own testimony," even though "such discussions will inevitably include some consideration of the defendant's ongoing testimony." *Ibid.*; accord, *Geders*, 425 U. S., at 88, 91. We say no more than that today.

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The conferral order here prevented only one thing during the overnight recess that bifurcated Villarreal's testimony: Villarreal's lawyers could not manage his ongoing testimony in light of the testimony he had already given. Such management amounts to discussion of testimony *qua* testimony and therefore falls on the unprotected side of the line we discern from our precedents. Accordingly, the conferral order did not ban or impermissibly chill constitutionally protected consultation. The judgment of the TCCA is affirmed.

*It is so ordered.*

JUSTICE ALITO, concurring.

I agree that the trial court did not violate petitioner's Sixth Amendment right to the assistance of counsel by restricting consultation with his attorney during an overnight midtestimonial recess. I write to set out the framework under which courts should analyze limitations on communications between a criminal defendant and his attorney during a break in the defendant's testimony.

## I

I begin with a word about the origin and nature of the constitutional right that petitioner invokes, that is, the right to confer with his attorney during an overnight break in his testimony. Petitioner claims that the Sixth Amendment right to the assistance of counsel includes this right. When the Sixth Amendment was adopted, however, criminal defendants could not testify in their own defense because they were not considered competent witnesses. See *Rock* v. *Arkansas*, 483 U. S. 44, 49–50 (1987). It follows that a defendant could not consult with an attorney about such testimony. Most States did not allow defendants to take the stand until well into the 19th century, see *Ferguson* v. *Georgia*, 365 U. S. 570, 576–577, and nn. 5–6 (1961), and this Court did not squarely recognize a defendant's constitutional right to testify in his own defense until its 1987 decision in *Rock*, 483 U. S., at 49. Even then, the Court did not hold that the Sixth Amendment alone conferred this right. The Court pointed to several possible sources of the right but appeared to rely primarily on the Due Process Clause. See *id.*, at 51. And the Court made clear that the constitutional right to testify was subject to limitations designed to protect the truth-seeking function of trial. *Id.*, at 55–56, and n. 11. Limitations on midtestimonial attorney-client communications must therefore be analyzed against this backdrop.

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